least not until there is an inquiry that reveals what the real story is, and who actually attacked Parliament?

Among the people who have appealed against Mohammad Afzal's death sentence are those who are opposed to capital punishment in principle. They have asked that his death sentence be commuted to a life sentence. To sentence a man who has not had a fair trial, and has not had the opportunity to be heard, to life imprisonment is less cruel but just as arbitrary as sentencing him to death. The right thing to do would be to order a re-trial of Afzal's case, and an impartial, transparent inquiry into the 13 December Parliament Attack. It is utterly demonic to leave a man locked up alone in a prison cell, day after day, week after week, leaving him and his family to guess which day will be the last day of his life.

A genuine inquiry would have to mean far more than just a political witch-hunt. It would have to look into the part played by intelligence, counter-insurgency and security agencies as well. Offences such as the fabrication of evidence and the blatant violation of procedural norms have already been established in the courts,[15] but they look very much like just the tip of the iceberg. We now have a police officer admitting (boasting) on record that he was involved in the illegal detention and torture of a fellow citizen. Is all of this acceptable to the people, the government and the courts of this country?

Given the track record of Indian governments (past and present, right, left and centre), it is naive—perhaps utopian is a better word—to hope that any government will ever have the courage to institute an inquiry that will, once and for all, uncover the real story. A maintenance dose of cowardice and pusillanimity is probably encrypted in all governments. But hope has little to do with reason.

Therefore, this book, offered in hope.

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Postscript: Custodial Confessions, the Media and the Law

Is the 'collective conscience' that the Supreme Court refers to the same as majority opinion? Would it be fair to say that it is fashioned by the